

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

WRIT PETITION NO. 672 / 2013 (S)

BETWEEN:

Dr. Rathanraj

... PETITIONER

A N D:

The State & another

... RESPONDENTS

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... RESPONDENTS

SYNOPSIS

01. 28.10.1991 : The Petitioner was selected and appointed as Lecturer in the establishment of the first respondent.

02. 03.03.1994 : The appointment of the Petitioner has been approved with Grant-in-Aid.

03. 01.11.2005 : A gradation lit has been prepared and published, wherein the name of the Petitioner is shown at SLNo.2.

04. 09.06.2006 : The Management of the first respondent institution has given an endorsement stating that one Sri. B.Ramesh Naik was already appointed as Assistant Professor in the Department of Industrial Engineering and Management.

05. 10.07.2006 : The first respondent issued a paper publication inviting applications from the eligible candidates to fill up the post of Assistant Professor amongst SC candidates. That being aggrieved the Petitioner preferred writ petition before this Hon'ble Court.

06. 08.07.2011 : The Learned Single of this Hon'ble Court was pleased to Allow the writ petition filed by the Petitioner and quashed the paper publication and issued directions to the concerned to initiate fresh steps to fill up the posts to consider the case of the Petitioner, if he is found eligible and qualified for promotion.

07. 10.08.2011 : That after obtaining the certified copy of the judgment, the same was communicated to the accused. But, to no action was been taken. Hence, being aggrieved the Petitioner filed Contempt Petition in CTA.No. 1088/2012.

08. 31.10.2012 : That during the pendency of the contempt proceedings an Endorsement was issued, stating that as per amended Rules of Recruitment dated 08.09.2008, there is no provision for Promotion. That being aggrieved by the said endorsement, the Petitioner has presented this Writ Petition.

BREIF FACTS OF THE CASE

The Petitioner has presented this Writ Petition with a prayer to set-aside the Order dated 31.10.2012 marked at Annexure-G, issued by the 3rd respondent - Director, Department of Technical Education Bangalore, as the same is illegal malafide and unreasonable and with a further direction to the respondents to promote the petitioner to the cadre of Assistant Professor in accordance with pre-amended Rules of Recruitment and to granting all the consequential benefits, to meet the ends of justice.

BANGALORE

DATE: 01.01.2013

ADVOCATE FOR PETITIONER

IN THE HIGH COURT OF KARNATAKA AT BANGALORE**WRIT PETITION NO. 672/2012 (S)****BETWEEN:**

Sri. Dr.Rathanraj K.J.
S/o K.Janardhan,
Aged about 46 years,
Presently working as
Selection Grade Lecturer,
Department of Industrial
Engineering & Management
B.M.S. College of Engineering,
Bull Temple Road,
Bangalore.
Residing at No.139, 1st Floor,
Mudaliar Street, Basavanagudi,
Bangalore-560 004.

...PETITIONER**A N D:**

01. The State of Karnataka,
Rep. by its Secretary,
Department of Technical Education,
M.S.Buildings,
Bangalore-01.

02. The B.M.S. College of Engineering,
Rep. by its, Principal,
P.B.No.1908,
Bangalore - 560 001.

03. The Director of
Technical Education,
Department of Technical Education,
M.S.Buildings,
Bangalore-01.

... RESPOSIDENTS

**MEMORANDUM OF WRIT PETITION UNDER ARTICLES 226
AND 227 OF THE CONSTITUTION OF INDIA**

The petitioner above named begs to submit as under:-

FACTS OF THE CASE

01. The Petitioner is a post Graduate in M.Tech and he is also a Doctorate holder. That on 28.10.1991, in a duly constituted selection committee, the petitioner was selected and appointed as a Lecturer, in the Department of, Industrial Engineering and Management of B.M.S. College of Engineering. That, the appointment of the petitioner has been approved with Grant-In-Aid vide official Memorandum dated 03.03.1994 and a copy of the same is produced herewith and marked as **ANNEXURE-A**. By that order, his appointment has been approved with Grant-In-Aid, retrospectively, w.e.f.24.05.1992.

02. That having regard to the excellent track record of service maintained by the petitioner, he was promoted to the next higher cadres i.e., to the cadre of Senior Lecturer and selection Grade Lecturer. That on 17.10.2005 the petitioner had acquired, p.hd. qualification. The petitioner is fully qualified, eligible and entitled to be promoted as Assistant Professor in

Industrial Engineering Management of 2nd respondent Institution.

03. That a gradation list, in respect of Lecturer as on 01.11.2005 has been prepared and published by the Principal of B.M.S. Engineering College and copy of the same is produced herewith and marked as ANNEXURE-B. In the said gradation list, the petitioner is ranked at Sl.No.2. Since the petitioner had acquired p.hd. qualification, he is alone qualified, eligible and entitled to be promoted as Assistant Professor. That the post of Assistant Professor shall have to be filled up strictly in accordance, with the ranking assigned in the relevant gradation list. That, instead of filling up of the said post by way of promotion, promoting the petitioner who is qualified, eligible and entitled to be promoted, deliberately, with a malafide intention to deny the legal and legitimate promotion to the petitioner, the Principal of the College had issued a paper publication dated 10.07.2006 and copy of the same is produced herewith and marked as ANNEXURE-C. By that paper publication, applications were invited from the eligible candidates to fill up the post of Assistant Professor amongst SC candidates. The post of Assistant Professor has been earmarked exclusively for the members belonging to SC community. It is relevant to mention here itself that one post of Assistant Professor in B.M.S. Engineering College has already been filled up by promoting a ST candidate and this

fact is evidenced from the endorsement issued to the petitioner dated 09.06.2006 by the Principal of B.M.S. Engineering College and a copy of the same is produced herewith and marked as **ANNEXURE-D**. In the said endorsement, it has been clearly stated that one Sri.B.Ramesh Naik was already appointed as Assistant Professor in the Department of Industrial Engineering Management under SC/ST backlog vacancies. Again earmarking another post of Assistant Professor vide impugned paper publication dated 10.07.2006 is unjust, illegal arbitrary and contrary to the law declared by the Hon'ble Supreme Court of India in the case reported in Chetan Dilip Motghare V/s Bhide Girls Education Society, Nagpur, AIR 1994 SC 1917. In the said decision, the Hon'ble Supreme Court has enunciated a principle that if a reservation is made for a single post in the beginning of the year for the purpose of filling up the same in future by way of promotion, that will be unconstitutional. Further, the Hon'ble Supreme Court in the case reported in AIR 1988 SC 989 has held that reservation would not apply in the case of a isolated post. Single promotion post cannot be reserved as it amounts to 100% reservation. That, the facts and circumstances of this case is fully covered by the principals already enunciated by the Apex Court of the country. In view of the settled position of law, the impugned notification is bad in law and contrary to the law declared by the Apex Court of the County.

04. That Being aggrieved the petitioner had approached this Hon'ble Court in W.P.No.9924/2006 which came to be allowed by its order dated 08.07.2011 and quashed the paper publication and a copy of the same is produced herewith and marked as **ANNEXURE-E** the Hon'ble High Court has held (the said decision) the one post of Assistant Professor has already been filled up by Direct Recruitment and one post shall be exclusively year marked in favour of promotion except the petitioner no one is eligible for promotion to the cadre of Assistant Professor. That the Cadre and Recruitment Rules makes it manifestly very clear that the post of Assistant Professor shall have to be filled up by 50% by promotion and 50% by Direct Recruitment the quota meant for Direct Recruitment has already been filled up but quota meant for promotion has not been filled up.

05. The directions contained in the order dated 08.07.2011 has not been complied with. Hence the petitioner has filed a CCC No.1088/2012 complying disobedience of the court order the contempt proceedings were initiated on 09.10.2012 and on that day notices have been ordered and matter has been posted to 17.10.2012. That the respondent management has entered, its, appearance and filed its counter on 09.11.2012 stating that the Rules of Recruitment came into force on 2008 making no provision for promotion in the cadre of Assistant Professor copy of the Rules dated 08.09.2008 is produced

herewith and marked as ANNEXURE-F, together with contempt proceedings an endorsement dated 31.10.2012 was issued by the management and a copy of the same is produced herewith and marked as ANNEXURE-G accordingly the contempt proceedings have been dropped vide its order dated 17.11.2012 granting liberty to the petitioner to approach this Hon'ble Court. Hence, this Writ Petition.

06. The petitioner has no other alternative, effective and adequate remedy, otherwise than by means of filing this Writ Petition before this Hon'ble Court for the redressal of his grievances, on the following amongst other grounds. That, the petitioner has not filed any other case on the same cause of action. No other case, appeal, suit or any writ is pending before any court of law pertaining to the same cause of action.

GROUND S

07. The Director of Technical Education was issued a circular dated 25.08.2005 and a copy of the same is produced herewith and marked as ANNEXURE-H by which post of Assistant Professor have to be filled up by promotion who have possessed requisite qualification and another circular issued by the Director on 25.06.2006 and a copy of the same is produced herewith and marked as ANNEXURE-J where by the post of Assistant Professor shall be filled up from amongst to

qualified persons. The Cadre & Recruitment Rules have been amended providing no promotion to the cadre of Assistant Professor, it is, relevant to the official Memorandum dated 21.07.1997 and a copy of the same is produced herewith and marked as ANNEXURE-K issued by the 2nd respondent. That the Principal of the collage made it very as per 1987 C & R Rules the cadre of Assistant Professor as to be filled up 50% Direct Recruitment and 50% by promotion that in view of the matter denial of the promotion is bad in law.

08. It is submitted that a Gradation List in respect of Lecturers has on 01.01.2005 was published wherein the petitioner ranked at Sl.No.02 that as per the ranking assigning from the Gradation List, the petitioner is qualified to be Assistant Professor and to others named in the Gradation List were in eligible to be promoted.

09. That, the Cadre and Recruitment Rules dated 08.09.2008 has no retrospectively operation the C& R Rules came into force from the date of publication in the Official Gazette. That according to the pre-amended C & R Rules 50% of the post of Assistant Professor shall be filled up and persons qualified like the petitioner shall be promoted and this aspect of the matter remind un-noticed by the management the impugned notice is bad in law.

10. It is, respectfully submitted that the petitioner is fully qualified, eligible and entitled to be promoted in all respects as Assistant Professor in as much as he had not received any adverse communications whatsoever, questioning his integrity and devotion to duty. That, no departmental enquiry whatsoever was pending against the petitioner. That the petitioner is P.Hd holder who is alone qualified to be promoted. That in order to deny the legal and legitimate promotion to the petitioner, the impugned notice has been issued in total contravention of the Rules of Recruitment.

P R A Y E R

WHEREFORE, the petitioners most respectfully prays that this Hon'ble Court may be pleased to call for the entire records, pertaining to the case and to grant the following reliefs:

a) Issue a writ of certiorari or any other appropriate writ or order or direction, setting aside the order bearing No. KTE 66 EST 4(A) 2006 dated 31.10.2012 marked at Annexure-G, issued by the 3rd respondent - Director, Department of Technical Education Bangalore, has the same is illegal malafide and unreasonable to meet the ends of justice

b) Issue an order or direction, directing the respondents to promote the petitioner to the cadre of Assistant Professor in accordance with pre-amended Rules of Recruitment and to granting all the consequential benefits, to meet the ends of justice.

c) Issue any such orders as this Hon'ble Court deems fit to grant in the facts and circumstances of the case, to meet the ends of justice.

BANGALORE

DATE: 01.01.2013

ADVOCATE FOR PETITIONER

M.S. Anandaramu Advocate,
No. 11, 1st Floor, H V Choudhary
S C Road, R. K. Puram
[Opp. Movie Land Theatre]
Bangalore.

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IN THE HIGH COURT OF KARNATAKA AT BANGALORE

WRIT PETITION NO. _____/2013 (S)

BETWEEN:

Dr.Rathanraj

... PETITIONER

A N D:

The State & Ors

... RESPONDENT

VERIFYING AFFIDAVIT

I, Sri. Dr.Rathanraj K.J., S/o K.Janardhan, Aged about 46 years, Presently working as Selection Grade Lecturer, Department of Industrial Engineering & Management B.M.S. College of Engineering, Bull Temple Road, Bangalore, Residing at No.139, 1st Floor, Mudaliar Street, Basavanagudi, Bangalore-560 004, do hereby solemnly affirm and state on oath as follows:-

01. I am the Petitioner in the aforecited case and I am fully acquainted with the facts of the case, I am deposing to.

02. That, the statements made in paragraphs from 1 to 10 in the accompanying Writ Petition are true to the best of my knowledge, information and belief.

03. Annexures-A to K are true copies of the originals.

VERIFICATION

04. I declare that this is my name and signature and the contents of this affidavit are true to the best of my knowledge and belief.

BANGALORE

DATE: 01.01.2013

Identified by me:

ADVOCATE

No. of Corrections:

ANNEXURE-A

14
ಬಿ.ಎಂ.ಎಸ್.ಇಂಜಿನಿಯರಿಂಗ್ ಕಾಲೇಜು, ಬೆಂಗಳೂರು 560 019.

ಸಂಖ್ಯೆ: ಇಎಸಬಿ:311:(ಬಿಇ):93:93-94

ದಿನಾಂಕ: 03.03.1994

ಅಧಿಕೃತ ಜ್ಞಾಪನ

ವಿಷಯ: ಇಂಡಸ್ಟ್ರಿಯಲ್ ಅಂಡ್ ಫ್ಯಾಡಕ್ಷನ್ ಇಂಜಿನಿಯರಿಂಗ್
ವಿಭಾಗದಲ್ಲಿ ಕಾರ್ನರ್ ನಿರ್ವಹಿಸುತ್ತಿರುವ ಸಿಬ್ಬಂದಿ
ಯವರ ವೇತನವನ್ನು ಅನುದಾನಕ್ಕೆ ಒಳಪಡಿಸುವ
ಬಗ್ಗೆ.

ಉಲ್ಲೇಖ: 1) ಸರ್ಕಾರದ ಆದೇಶ ಸಂ.ಇಡಿ 316 ಯೋಯೋಲಕ
90 ದಿನಾಂಕ 24.03.1992.

2) ತಾಂತ್ರಿಕ ಶಿಕ್ಷಣ ನಿರ್ದೇಶಕರ ಅನುಮೋದನೆ ಪತ್ರಗಳು

ಅ) ಸಂ.ಡಿಬಿಇ 6 ಇಎಸಬಿ(4) 93 1 ದಿ: 15.12.93.

ಆ) ಸಂ.ಡಿಬಿಇ 6 ಇಎಸಬಿ(4) 93 ದಿ: 18.02.94.

ಈ ಕಾಲೇಜಿನ ಆಡಳಿತ ಮಂಡಳಿಯು ಅನುಮೋದನೆಗೆ ಒಳಪಟ್ಟು, ತಾಂತ್ರಿಕ ಶಿಕ್ಷಣ ನಿರ್ದೇಶಕರ
ಅನುಮೋದನೆ ಪತ್ರದಲ್ಲಿರುವ ಷರತ್ತುಗಳ ಗೀತೆ ಈ ಸಂಸ್ಥೆಯಲ್ಲಿ ಇಂಡಸ್ಟ್ರಿಯಲ್ ಅಂಡ್
ಫ್ಯಾಡಕ್ಷನ್ ಇಂಜಿನಿಯರಿಂಗ್ ವಿಭಾಗದಲ್ಲಿ ಕಾರ್ನರ್ ನಿರ್ವಹಿಸುತ್ತಿರುವ ಈ ಕೆಳಕಂಡ ಸಿಬ್ಬಂದಿ
ಯವರ ವೇತನವನ್ನು ದಿನಾಂಕ 24.03.1992ರಿಂದ ಸರ್ಕಾರದ ಅನುದಾನಕ್ಕೆ ಒಳಪಡಿಸಲಾಗಿದೆ.

ಕ್ರಮ
ಸಂಖ್ಯೆ

ಹೆಸರು

ಹುದ್ದೆ/ನಾಮ

1. ಶ್ರೀ ಕೆ.ಜಿ.ರತನರಾಜ

ಉಪನ್ಯಾಸಕರು

ಷರತ್ತುಗಳು:

1) ಸದರಿಯವರು ತಾಂತ್ರಿಕ ಶಿಕ್ಷಣ ನಿರ್ದೇಶಕರ ಮತು, ಕಾಲೇಜಿನ ಆಡಳಿತ ಮಂಡಳಿಯವರ
ನೇಮಾ ನಿರ್ದೇಶನಗಳು ಹಾಗೂ ನೇಮಕಾತಿ ನಿರ್ದೇಶನಗಳಿಗೆ ಒಪ್ಪಿಕೊಳ್ಳುವುದು.

ವಿತರಣೆ:

✓ 1) ಶ್ರೀ ಕೆ.ಜಿ.ರತನರಾಜ

2) ವಿಭಾಗ ಮುಖ್ಯಸ್ಥರು

3) ಕಛೇರಿ ಪ್ರತಿ

Ranana
ಪ್ರಿನ್ಸಿಪಾಲ್
11/3/94

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B.M.S. COLLEGE OF ENGINEERING, BANGALORE 560 019

Gradation List in respect of Lecturers as on 01.11.2005

ANNEXURE - B

Department: I.P.E.

No of Posts 5

Sl No.	Name	Present Designation	Qualification	Date Of Birth	Date of Entry Into Service	Date of Entry Into Regular Lecturer Cadre	Mode of Recruitment to the Present Cadre	Remarks
1	Shylaja J.	Lect (S.G)	BE ME	09.01.65	23 10 1991	24 3 1992	RL	
2	Rathna Raj K. J.	Lect (S.G)	BE MTech	17.05.66	28 10 1991	24 3 1992	RL	
3	Dr.Ravishanker B.	Lect (S.G)	BE ME PH.D	22.05.67	1 2 1992	24 3 1992	RL	

rk *C. S. S. S. S.*

PRINCIPAL
B.M.S. College of Engineering
BANGALORE-560 019.
b/c

ANNEXURE - C DH Av

DECCAN HERALD

B.M.S. COLLEGE OF ENGINEERING

P. O. Box No. 1908, Bangalore - 560 019. Phone: 26622130 Fax: 080-26614357

No. EST/AD/II/20/06-07

NOTIFICATION

Date: 10.07.2006

Applications are invited for the following Aided Faculty positions in the prescribed Forms:

Positions	Department	No. of Posts		Reservations
		UG	PG	
Professor	Electrical Engineering	1	1	SC, GM
	Electronics & Communication Engineering	0	2	SC, GM
	Physics	1	0	GM
* Training & Placement Officer (Professor)		1	0	GM
Assistant Professor	Mechanical Engineering	1	0	GM
	Industrial Engineering & Management	1	0	SC(Backlog),
	Physics	1	0	GM
Lecturer	Civil Engineering	3	0	ST, Gr.I, GM
	Mechanical Engineering	3	0	Gr.I, Gr.II A, GM
	Electrical Engineering	1	0	Gr.I
	Electronics & Communication Engineering	3	0	Gr.II A, GM, SC
	Industrial Engineering & Management	2	0	GM, ST
	Mathematics	1	0	GM
	Geology	1	0	GM
Director of Physical Education		1	0	GM

Qualification, experience & scale of pay: As Prescribed by the AICTE.

Details regarding the above may be obtained from this office

* In addition to qualification stipulated by AICTE, experience in conducting Training Programmes for students / staff, EDP Programmes, Collaborative Programmes with Industry / other Technical Institutes, Research / Consultancy is desirable.

Maximum age limit as on the date of receiving applications: 1) Professor / Assistant Professor - 45 Years. 2) Lecturer - 33 Years (The age limit as per Govt. rules and is relaxable to the extent as provided in the said rules to the reserved and other category candidates)

NOTE: 1. The prescribed application forms can be obtained on or before 26.07.2006 from the office either in person or by post on payment of Rs. 200/- in respect of GM / Gr.I / Gr.II A and Rs. 100/- in respect of SC / ST. The candidates should send a self addressed sufficiently stamped envelope (23"x10") along with a crossed DD drawn on any scheduled Bank for the value noted above in favour of PRINCIPAL, BMSCE, BANGALORE. 2. Duly filled in Applications should reach the undersigned on or before 05.08.2006.

3. Right to fill up any of the vacancies lies with the Management subject to the approval by the DTE.

Place: Bangalore
Date: 10.07.2006

(Dr. M.K. VENKATESHA)
PRINCIPAL

BMS-2601

17.

ANNEXURE-D

B.M.S. COLLEGE OF ENGINEERING : BANGALORE - 19

No. EST/P.254/06-07

Date: 09.06.2006

ENDORSEMENT

Dr.K.J.Rathan Raj, Lecturer (SG), Department of IEM is hereby informed in response to his letter dated 31.05.2006 that the appointment of Sri B.Ramesh Nayak as Assistant Professor in the Department of IEM is made by Direct Recruitment under Special Recruitment of SC/ST backlog vacancies by the DTE vide their letter No. DTE 63 EST (4) A 2001/6399 dated 02.03.06 and not by promotion.

M K Chelaguda
PRINCIPAL
9/6/06

Distribution:

1. Dr. K.J. Rathan Raj, Lecturer (SG)
Dept of IEM
2. Office copy
3. HoD - IEM

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27295/11

H.S. Anandaramu & Asst

ANNEXURE - E

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

DATED THIS THE 08TH DAY OF JULY 2011

BEFORE

THE HON'BLE MR. JUSTICE ANAND BYRAREDDY

WRIT PETITION NO.9924 OF 2006 (S-RES)

BETWEEN:

Dr.Rahanraj K.J.
S/o.K.Janardhan.
Aged about 40 years,
Presently working as
Selection Grade Lecturer,
Department of Industrial
Engineering & Management
B.M.S.College of Engineering,
Bull Temple Road,
Bangalore,
Residing at No.139, 1st Floor,
Mudaliar Street,
Basavanagudi,
Bangalore - 560 004.

.. Petitioners

(By Sri.M.S.Anandaramu, Advocate for petitioners)

AND:

1. The State of Karnataka,
Represented by its Secretary,
Department of Technical Education,
M.S.Building,
Bangalore - 560 001.
2. The B.M.S.College of
Engineering, represented by

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received

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2
Its Principal,
P.B.No.1908,
Bangalore - 560 019.

3. The Director of Technical
Education, Department of
Technical Education,
Palace Road,
Bangalore - 560 001.

.. Respondents

(By Smt.Revathy Adinath Narde, HCGP for R1 & R3;
Sri.K.Vishwanath, Advocate for R2;
Sri.H.Srinivasa Rao, Advocate for Srinivas & Badri
Associates, Advocate for R2)

This writ petition is filed under Articles 226 & 227 of the Constitution of India praying to quash the paper notification dated 10.7.2006 vide Annexure C issued by the 1st respondent in so far as it relates to paper advertisement to the post of Assistant Professor in the establishment of the 2nd respondent earmarking the same in favour of ST candidate as that portion of the notification and to direct the respondents to consider the claim of the petitioner for promotion to the post of Assistant Professor in the establishment of the 2nd respondent.

This writ petition, coming on for hearing, this day, the Court, made the following:

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ORDER

Heard the learned counsel for the petitioner and the learned counsel for the second respondent.

2. It is the case of the petitioner that he is a postgraduate holding M.Tech degree and also holds a doctorate. The petitioner claims to have been selected and appointed as a lecturer in the department of Industrial Engineering and Management. His appointment was approved with grant in aid as per Memorandum dated 03.03.1994. He was promoted to the cadre of Senior Lecturer and Selection Grade Lecturer. He secured his P.hd in October, 2005. He was fully qualified and eligible to be promoted as Assistant Professor in Industrial Engineering Management. The gradation list in respect of the lecturers as on November 2005 was prepared and published by the management. The petitioner was ranked at Sl.No.2. It is his case that he alone was eligible and entitled to be promoted as Assistant



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Professor. There are two posts of Assistant Professor in the institution and the Cadre and Recruitment Rules laid down that 50% shall be filled up by direct recruitment and 50% by promotion. But instead of filling up the post by way of promotion, the same is sought to be denied, whereby the Principal of the College has issued a paper publication dated 10.07.2006 inviting applications from eligible candidates to fill up the posts of Assistant Professor amongst the scheduled caste candidates. The petitioner points out that, one post of Assistant Professor in the college has already been filled up by promoting a candidate from the scheduled tribe category and this fact is evidenced from the endorsement issued to the petitioner dated 09.06.2006 and it is stated that one B.Ramesh Naik has already been appointed as Assistant Professor in the Department of Industrial Engineering Management. Hence, to earmark yet another post of Assistant Professor by way of paper publication to be filled up by



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a scheduled caste candidate would run contrary to law. In this regard placed his reliance on the judgment of the Supreme Court in AIR 1994 SC 1917 (Chetan Dilip Motghare vs. Bhide Girls Education Society, Nagpur) and hence seeks a direction to the respondent to promote the petitioner and to set aside the paper publication inviting applications to fill up the posts of Assistant Professor and to promote the petitioner to the post.

3. The petition is filed in July 2006 with the above prayers. The statement of objections on behalf of respondent No.2 would seek to justify its action by stating that, though the Cadre and Recruitment Rules has been prescribed that two posts of Assistant Professor was to be filled up, one by direct recruitment and other by promotion, though there was an attempt on the part of the respondent management to fill up the post by direct recruitment is not so far done and both the posts were filled up by promotion even after

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Ramesh Naik was directly recruited as a scheduled tribe candidates, since the post was earlier filled up by promotion, the second post is also sought to be filled up by direct recruitment and hence the paper publication.

4. The said justification cannot be readily accepted as it is in contrary to the Cadre and Recruitment Rules and further by way of reply, the learned counsel for the petitioner would point out that, in any event, there can be no longer any room for controversy since there are now two vacant posts and even if one could be filled up, since there was an interim order in the present petition and since the two vacant posts continued to exist, even if one post is to be filled by direct recruitment, the other can be filled up by promotion of the petitioner having due regard to the eligibility and therefore, in that view of the matter, it is not seriously in dispute as the respondent is to fill up one post by direct recruitment and the other by



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promotion. The respondent may take appropriate action in this regard. In so far as paper publication dated 10.07.2006 is concerned, the same is redundant and in any event it stands quashed. The respondent is at liberty to initiate fresh steps to fill up the posts one by direct recruitment and one by promotion and to consider the case of the petitioner, if he is found eligible and qualified for the promotion.

Accordingly, petition stands disposed of.

Sd/-
Judge



TRUE COPY

[Signature]
Section Officer
High Court of Karnataka
Bangalore-560 021

- 15/7/11
- a) The date on which charges and additional charges if any, are called for.....
 - b) The date on which charges and additional charges, if any, are deposited/paid.....
 - c) The date on which the copy is ready... 28/7/11
 - d) The date of notifying that the copy is ready for delivery... 28/7/11
 - e) The date on which the applicant is required to appear on or before... 1/8/11
 - f) The date on which the copy is delivered to the applicant... 28-7-11
- Witnessed by *[Signature]* Bhavja S



ಕರ್ನಾಟಕ ರಾಜ್ಯ

ಅಧಿಕಾರಿಗಳಿಗೆ ಪ್ರಕಟಿಸಲಾಯಿತು

ವಿಶೇಷ ಪತ್ರಿಕೆ

ಭಾಗ - IV-A

ಪಂಗಳೂರು, ನೇರಮಲೂರು, ಸೆಪ್ಟೆಂಬರ್ ೮, ೨೦೦೮ (ಪ್ರಾರ್ಥನೆ ೧೭, ಶಕ ವರ್ಷ ೧೯೩೦)

ನಂ. ೯೮೧

EDUCATION SECRETARIAT

NOTIFICATION

No. ED 165 DTE 2007, Bangalore, dated: 06th September, 2008

Whereas the draft of the Karnataka Education Department Service (Technical Education Department) (Recruitment) (Amendment) Rules, 2008 which the Government of Karnataka proposes to make in exercise of the powers conferred by sub-section (1) of section 3 read with section 8 of the Karnataka State Civil Services Act 1978 (Karnataka Act 14 of 1980) was published as required by clause (a) of sub-section (2) of section 3 of the said Act, in Notification No. ED 165 DTE 2007 dated. 05-05-2008 inviting objections or suggestions from any person likely to be affected thereby within 15 days from the date of publication of the draft.

And whereas objection and suggestions received within the stipulated period have been considered by the State Government. The relevant objection received have been considered and the objections which are not pertaining to the prevailing AICTE rules were rejected.

Now, therefore, in exercise of the powers conferred by sub section (2) of section 3, read with section 8 of the Karnataka State Civil Service Act 1978 (Karnataka Act 14 of 1980), the Government of Karnataka hereby makes the following rules namely:

1. **Title and commencement.**- (1) These rules may be called the Karnataka Education Department Service (Technical Education Department) (Recruitment) (Amendment) Rules, 2008.
- (2) They shall come into force from the date of their publication in the Official Gazette.

2. Amendment of Schedule.- In the Schedule to the Karnataka Education Department Service (Technical Education Department) (Recruitment) Rules, 2006,-

(i) after the entries relating to the category of post of Joint Director of Technical Education at Sl No. 2 the content at Sl No. 3 be deleted and the following shall be inserted, namely:-

Sl No	Designation and scale of pay of the post	No. of posts			Method of recruitment	Minimum Qualification
		Permanent	Temporary	Deputation Reserve		
3	Principal, Engineering Colleges / Govt SKSJT [Rs.18400-22400] [AICTE]	1	3	-	By direct recruitment	For direct recruitment: (1) Must possess Ph.D. degree with first class in Bachelor's degree level or Master's degree level in the respective discipline. In addition, he must have not less than fifteen years of experience in Teaching in an institution recognized by AICTE or an university established by law or in an Industry or Research out of which five years must be at the level of Professor or above. Provided that in respect of candidates from Industry/ Profession with Master's Degree in Engineering/ Technology, must have put in not less than fifteen years Industrial/ Professional experience of which not less than five years must be at a senior level comparable to that of an Professor. Desirable: Administrative Experience in a responsible position Age: Must not have attained the age of fortyeight years

(2) after the entries relating to the category of post of Administrative Officer, Directorate at Sl No.5 the category of Professor in Textile Technology (Sl No. 6) and Professor in Silk Technology (Sl No. 7), SKSJT Institute, Bangalore. is merged together as mentioned below in Sl No. 6 and the following shall be inserted at serial number 7 namely:-

6	(i) Professor in Textile Technology, SKSJT Institute, Bangalore (Rs.16400-22400) (AICTE)	3	-	-	By direct recruitment.	For direct recruitment:- (1) Must possess Doctorate (Ph.D) with first class Master's degree in Textile Technology. Provided that if no candidate with Doctorate and first class Master's Degree is available, a candidate with Doctorate (Ph.D) and with first class degree may be considered. (2) Must have put in not less than 10 years of experience in teaching or in industry or in research out of which five years must be at the level of Assistant Professor or equivalent cadre. Age: Must not have attained the age of fortyfive years. For direct recruitment:- (1) Must possess Doctorate (Ph.D) with first class Master's degree in Silk Technology. Provided that if no candidate with Doctorate and first class Master's Degree is available, a candidate with Doctorate (Ph.D) and with first class degree may be considered. (2) Must have put in not less than 10 years of experience in teaching or in industry or in research out of which five years must be at the level of Assistant Professor or equivalent cadre. Age: Must not have attained the age of fortyfive years.
7	(ii) Professor in Silk Technology, SKSJT Institute, Bangalore (Rs.16400-22400) (AICTE)	3	53	-	By direct recruitment.	For direct recruitment:- (1) Must possess Ph.D. degree with the first class in Bachelor's degree or Master's degree level in the appropriate branch of Engineering/ Technology with ten years of experience in Teaching in an institution recognized by AICTE or an university established by law or in an Industry or Research out of which not less than five years must be at the level of Assistant Professor. Provided that in case of candidates from Industry or profession with Master's degree in Engineering/ Technology must have put in not less than ten years Industrial/ Professional experience of which not less than five years must be at a senior level comparable to that of an Assistant Professor. (2) Must not have attained the age of fortyfive years.

(3) after the entries relating to the category of post of Professor Engineering College at Sl No. 7 the category of Assistant Professor in Textile Technology (Sl No. 8) and Assistant Professor in Silk Technology (Sl No. 9), SKSJT Institute, Bangalore, is merged together as mentioned below in Sl No. 8 and the following shall be inserted at serial number 9 namely:-

8	(i) Assistant Professor in Textile Technology, SKSJT Institute, Bangalore (Rs.12000-18300) (AICTE)	4	-	By direct recruitment.	For direct recruitment:- (1) Must posses Doctorate (Ph.D) with atleast second class Master's degree in Textile Technology. Provided that candidates with Doctorate and second class Master's Degree are not available, first class Degree with Doctorate (Ph.D) may be considered. Age: Must not have attained the age of fortyfive years.
	(ii) Assistant Professor in Silk Technology, SKSJT Institute, Bangalore (Rs.12000-18300) (AICTE)	-	1	By direct recruitment.	For direct recruitment:- (1) Must posses Doctorate (Ph.D) with atleast second class Master's degree in Silk Technology. Provided that candidates with second class Master's Degree are not available, then first class Degree with Doctorate (Ph.D) may be considered. Age: Must not have attained the age of fortyfive years
9	Assistant Professor Engineering College [Engineering Subjects] (Rs.12000-18300) (AICTE)	4	123	By direct recruitment.	For direct recruitment:- (1) Must posses Ph.D degree with the first Class in bachelor's degree or Master's degree level in the appropriate branch of Engineering/ Technology with three years experience in Teaching in an institution recognized by AICTE or an university established by law, or in an Industry or Research at the level of lecturer; or (2) First Class Master's degree in the appropriate branch of Engineering/ Technology with five years experience in Teaching/ Industry at the level of lecturer or equivalent. Such candidates shall be required to obtain Ph.D. degree within a period of seven years from the date of appointment as Assistant Professor; Provided that in respect of candidates from Industry/ Profession with First Class Bachelor's Degree/ First class Master's degree in the appropriate branch of Engineering/ Technology must have not less than five years Industrial/ professional experience. Age: Must not have attained the age of fortyfive years.

(4) after the entries relating to the category of post of Statistician at Sl No.22 the category of Lecturer in Textile Technology (Sl No.23) and the category of Lecturer in Silk Technology (Sl No.24) SKSJT Institute, Bangalore, is merged together as mentioned below in Sl No.23 and the following shall be inserted at serial number 24, 24(A), 24(B) and 24(C) namely:-

23	(i) Lecturer in Textile Technology, SKSJT, Bangalore (Rs.8000-13500) (AICTE)	5	-	-	By direct recruitment	<u>For direct recruitment.</u> Must have First Class Master's Degree in Textile Technology. If no suitable candidate with First Class Master's Degree is available a candidate with First Class Degree in Textile Technology may be considered.
	(ii) Lecturer in Silk Technology, SKSJT, Bangalore (Rs.8000-13500) (AICTE)		2	-	By direct recruitment	<u>For direct recruitment.</u> Must have First Class Master's Degree in Silk Technology. If no suitable candidate with First Class Master's Degree is available a candidate with First Class Degree in Silk Technology may be considered.
24	Lecturer in Engineering Colleges [Engineering Subjects] (Rs.8000-13500) (AICTE)	6	281	-	By direct recruitment	<u>For direct recruitment.</u> Must have First Class Master's Degree in the appropriate branch of Engineering / Technology. If no suitable candidate with First Class Master's Degree is available a candidate with First Class Bachelors Degree in appropriate branch of Engineering/ Technology may be considered.
24A	Lecturer in Engineering Colleges [Non-engineering subjects] (Rs.8000-13500) (AICTE)	-	36	-	By direct recruitment	<u>For direct recruitment.</u> Must have First Class M.Sc. degree [for Science] or at M.A. [for Humanities] or must have secured not less than 55 percent of marks or an equivalent CGPA at the Master's Degree level in the relevant subject from an Indian University. Must have passed the National Eligibility Test (NET) for Lecturers conducted by the UGC. CSIR or SET conducted by the State Government or any authority accredited by the UGC. Provided that the candidates who have possessed Ph.D/ M.Phil qualification are exempted from passing NET/SET.

24B	Librarians in Engineering Colleges. [Rs.8000-13500] [AICTE]	-	9	By direct recruitment	1. Qualifying in the national level test conducted for purpose by the UGC or any other agency approved by the UGC. 2. Master's degree in Library Science / Information Science / Documentation or an equivalent professional degree with at least 55% of the marks or its equivalent CGPA and consistently good academic record, computerisation of library.
24C	Assistant Director of Physical Education and Sports in Engineering colleges. [Rs.8000-13500] [AICTE]	-	9	By direct recruitment	1. A Master's degree in Physical Education (two years course) or Master's degree in Sports or an equivalent degree with at least 55% of the marks or its equivalent C.G.P.A and consistently good academic record. 2. Record of having represented the university / college at the inter - university / inter-collegiate competitions of the State in national championships. 3. Passed the physical fitness test 4. Qualifying in the national test conducted for the purpose by the UGC or any other agency approved by the UGC.

(6) after the entries relating to the category of post of Textile Foreman, SKSJT Institute, at serial number 47, the following shall be inserted at Sl No.47(A) namely:-

47A	Foreman Engineering Colleges/ Government Polytechnics [Rs. 10000-18150]	46	44	By promotion from the cadre of Instructors in respective faculty of Engineering / Technology. If no suitable candidate is available for promotion then by direct recruitment.	For promotion.- Must have put in a service of not less than three years in the cadre of Instructor in the respective branch of Engineering / Technology and must possess diploma in relevant discipline granted by an institution recognized by the Government and equivalent to Diploma granted by Board of Technical Examinations. For direct recruitment.- Must be holder of a first class Diploma in respective branch of Engineering / Technology with three years experience in Industry/Institution recognized by the Government. Diploma must be equivalent to Diploma granted by Board of Technical Examinations. Provided that for Automobile Engineering must also possess a current heavy-duty motor driving licence."
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[7] after the entries relating to the category of post of instructor in Textile Technology (SKSJTJ) Bangalore, at serial number 61, the following shall be inserted at SI No.61(A), namely:-

61A	Instructor Engineering Colleges/Govt. Polytechnics [Rs.8825-16000]	155	102	-	Fifty percent by direct recruitment and fifty percent by promotion from the cadre of Assistant Instructor in the respective branch of Engineering/Technology.	For promotion.- Must have put in a service of not less than three years in the cadre of Assistant Instructor in the respective branch of Engineering/Technology. For direct recruitment.- (1) Must be holder of first class diploma in the respective branch of Engineering/ Technology granted by an institution recognized by the Government or equivalent qualification to Diploma granted by the Board of Technical Examinations. (2) Must have an experience of not less than three years in the field from an institution recognized by the State Government Provided that for Automobile Engineering must also possess a current heavy-duty motor driving licence."
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[8] after the entries relating to the category of post of Physical Instructor (SKSJTJ) Bangalore, at serial number 62, the following shall be inserted at SI No. 62(A) namely:-

62A.	Draftsman in Civil Engineering [Engineering Colleges] [Rs.8825-16000]	0	9	-	Fifty percent by direct recruitment and fifty percent by promotion from the cadre of Assistant Instructor in Civil Engineering. If no suitable person is available for promotion then by direct recruitment.	For promotion.- Must have put in a service of not less than three years in the cadre of Assistant Instructor in Civil Engineering. For direct recruitment.- (1) Must be holder of a first class diploma in Civil Engineering granted by an institution recognized by the Government. (2) Must have an experience of not less than three years in the field from an institution recognized by the Government."
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(9) after the entries relating to the category of post of Assistant Instructor (Textile) SKS/JTL at serial number 73, the following shall be inserted at Sl No. 73(A) namely:-

73A	Assistant Instructor Engineering Colleges/ Govt. Polytechnics [Rs.6250-12000]	142	95	By promotion from the cadre of Mechanic in the respective branch of Engineering/Technology. If no suitable person is available for promotion, then by direct recruitment.	For promotion.- Must have put in a service of not less than three years in the cadre of Mechanic in the respective branch of Engineering/Technology. For direct recruitment.- Must be holder of a Diploma in the respective branch of Engineering/Technology, with three year's experience in a industry recognized by the Government or equivalent diploma granted by the Board of Technical Examinations. Provided that for Automobile Engineering must also possess a current heavy-duty motor driving licence."
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(10) after the entries relating to the category of post of Mechanic in Textile Technology (SKS/JTL) at serial number 80, the following shall be inserted at Sl No.80(A) namely:-

80A	Mechanic [Engineering Colleges/ Govt. Polytechnics] [Rs.5800-10500]	347	214	Fifty percent by promotion from the cadre of Helper in the respective branch of Engineering / Technology and fifty percent by direct recruitment.	For promotion.- (1) Must have passed SSLC; and (2) Must have put in a service of not less than five years in the cadre of Helper in the respective branch of Engineering/ Technology. For direct recruitment.- Must have passed SSLC and must be holder of a Technician Certificate/ITI in the respective branch of Engineering/Technology awarded by the Department of Vocational Education, Karnataka, Department of Labour & Training. Provided that for Automobile Engineering must also possess a current heavy-duty motor driving licence."
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33

(11) after the entries relating to the category of post of Helper SKS/ITL at serial number 27, the following shall be inserted, at Sl.No. 87(A) namely:-

87A	Helpers [Engineering Colleges/ Govt. Polytechnics] [Rs.5200-8200]	319	343	-	By direct recruitment.	(1) Must have passed S.S.L.C and (2) Must have put in a service of not less than one year in the respective branch of Engineering / Technology. Provided that for Automobile Engineering must also possess a current valid heavy-duty motor driving license.
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By Order and in the name of the Governor of Karnataka.

N.R. PRABHU

Under Secretary to Government,
Education Department,
(Collegiate & Technical Education)

3H

ಕರ್ನಾಟಕ ಸರ್ಕಾರ

ANNEXURE -6

ಸಂಖ್ಯೆ:ಡಿಟಿಇ 66 ಇಎಸ್‌ಟಿ 4(ಎ) 2006

5272/A

ನಿರ್ದೇಶಕರವರ ಕಛೇರಿ
ತಾಂತ್ರಿಕ ಶಿಕ್ಷಣ ಇಲಾಖೆ
ಬೆಂಗಳೂರು- 560001
ದಿನಾಂಕ:31-10-2012

ಹಿಂಬರಹ

ವಿಷಯ:- ಡಾ.ಕೆ.ಜೆ.ರತನ್‌ರಾಜ್, ಬಿ.ಎಂ.ಎಸ್ ಇಂಜಿನಿಯರಿಂಗ್ ಕಾಲೇಜು,
ಇವರು ಮಾನ್ಯ ರಾಜ್ಯ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದ ಮುಂದೆ ಸಲ್ಲಿಸಿದ್ದ ರಿಟ್
ಪಿಟಿಷನ್ ಸಂಖ್ಯೆ:9924/2006 (S-RES) ರ ದಿ: 08-07-11 ರ
ತೀರ್ಪನ್ನು ಪಾಲಿಸುವ ಬಗ್ಗೆ

- ಉಲ್ಲೇಖ:-1) ಇಲಾಖಾ ವೃಂದ ಮತ್ತು ನೇಮಕಾತಿ ನಿಯಮ ಆದೇಶ ದಿ: 06-09-08
2) ಸರ್ಕಾರದ ಪತ್ರ ಸಂಖ್ಯೆ: ಇಡಿ 4 ಟಿಇಸಿ 2010 ದಿನಾಂಕ: 11-01-10
3) ಸರ್ಕಾರದ ಪತ್ರ ಸಂಖ್ಯೆ: ಇಡಿ 115 ಟಿಜಿಎಲ್ 2006 ದಿ: 18-10-11
4) ರಾಜ್ಯ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದ ರಿಟ್ ಪಿಟಿಷನ್ ಸಂಖ್ಯೆ: 9924/2006
(S-RES) ರ ದಿ: 08-07-11
5) ಪ್ರಾಚಾರ್ಯರು, ಬಿ.ಎಂ.ಎಸ್ ಇಂಜಿನಿಯರಿಂಗ್ ಕಾಲೇಜು, ಇವರ
ಕಛೇರಿ ಪತ್ರ ಸಂಖ್ಯೆ: ಬಿಎಂಎಸ್/ಇಎಸ್‌ಟಿ/ಪಿ.254/2011-12
ದಿ: 03-10-11
6) ಅರ್ಜಿದಾರರ ಮನವಿ ದಿ: 23-02-12
7) ಅರ್ಜಿದಾರರ ಪರ ವಕೀಲರ ನೋಟಿಸ್ ದಿ: 16-07-12

ವಿಷಯಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ ಬಿ.ಎಂ.ಎಸ್ ಇಂಜಿನಿಯರಿಂಗ್ ಕಾಲೇಜು, ಬೆಂಗಳೂರು ಈ ಸಂಸ್ಥೆಯ
ಐ.ಇ.ಎಂ ವಿಭಾಗದಲ್ಲಿ ಉಪನ್ಯಾಸಕರಾಗಿ ಕಾರ್ಯನಿರ್ವಹಿಸುತ್ತಿರುವ ಡಾ.ಕೆ.ಜೆ.ರತನ್‌ರಾಜ್ ಇವರು ಸದರಿ
ವಿಭಾಗದಲ್ಲಿ ಖಾಲಿ ಇದ್ದ ಒಂದು ಸಹಾಯಕ ಪ್ರಾಧ್ಯಾಪಕರ ಹುದ್ದೆಯನ್ನು ಬ್ಯಾಕ್‌ಲಾಗ್ ಹುದ್ದೆಯೆಂದು
ಗುರುತಿಸಿ ದಿ: 10-07-2006 ರಂದು ಆಡಳಿತ ಮಂಡಳಿಯವರು ಪ್ರತಿಕ ಪ್ರಕಟಣೆ ಹೊರಡಿಸಿರುವುದನ್ನು
ಪ್ರಶ್ನಿಸಿ ಮಾನ್ಯ ರಾಜ್ಯ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ರಿಟ್ ಪಿಟಿಷನ್ ಸಂಖ್ಯೆ: 9924/2006 (S-RES) ರನ್ನು
ಸಲ್ಲಿಸಿದ್ದು ಅದರಂತೆ ದಿ: 08-07-11 ರ ತನ್ನ ತೀರ್ಪಿನಲ್ಲಿ ಮಾನ್ಯ ನ್ಯಾಯಾಲಯವು ಈ ಕೆಳಕಂಡಂತೆ
ತೀರ್ಪು ನೀಡಿರುವುದನ್ನು ಪರಿಶೀಲಿಸಲಾಗಿದೆ.

" In so far as paper publication dated 10.07.2006 is concerned , the same is
redundant and in event it stands quashed. The respondent is at liberty to initiate
fresh steps to fill up the posts one by direct recruitment and one by promotion and t
consider the case of the petitioner, if he found eligible and qualified for the
promotion"

Accordingly, petition stands disposed of."

ಸದರಿ ತೀರ್ಪನ್ನು ಉಲ್ಲೇಖ (1) ರ ಇಲಾಖಾ ವೃಂದ ಮತ್ತು ನೇಮಕಾತಿ ನಿಯಮಗಳನ್ವಯ ಪರಿಶೀಲಿಸಲಾಗಿ ಅನುದಾನಿತ ಇಂಜಿನಿಯರಿಂಗ್ ಕಾಲೇಜುಗಳಲ್ಲಿನ ಸಹಾಯಕ ಪ್ರಾಧ್ಯಾಪಕರ ಹುದ್ದೆಗಳನ್ನು ಶೇ.100 % ರಷ್ಟು ನೇರ ನೇಮಕಾತಿಯಿಂದ ಭರ್ತಿ ಮಾಡಲು ತಿಳಿಸಿರುತ್ತದೆ. (ಪ್ರತಿ ಲಗತ್ತಿಸಿದೆ)

ಸರ್ಕಾರವು ಕೂಡ ಉಲ್ಲೇಖ (2) ರಲ್ಲಿ ಇಂಜಿನಿಯರಿಂಗ್ ಕಾಲೇಜುಗಳಲ್ಲಿನ ಪ್ರಾಧ್ಯಾಪಕರು/ಸಹಾಯಕ ಪ್ರಾಧ್ಯಾಪಕರ ಹುದ್ದೆಗಳನ್ನು ನೇರ ನೇಮಕಾತಿಯಿಂದ ಭರ್ತಿ ಮಾಡಲು ಇಲಾಖಾ ವೃಂದ ಮತ್ತು ನೇಮಕಾತಿ ನಿಯಮಗಳಲ್ಲಿ ಅವಕಾಶ ಕಲ್ಪಿಸಿರುವುದರಿಂದ ಪ್ರಾಧ್ಯಾಪಕರು/ಸಹಾಯಕ ಪ್ರಾಧ್ಯಾಪಕರ ಹುದ್ದೆಗಳನ್ನು ಮುಂಬಡ್ತಿಯಿಂದ ಭರ್ತಿ ಮಾಡಲು ಚಾಲ್ತಿಯಲ್ಲಿರುವ ಇಲಾಖಾ ವೃಂದ ಮತ್ತು ನೇಮಕಾತಿ ನಿಯಮಗಳನ್ವಯ ಅವಕಾಶವಿಲ್ಲವೆಂದು ತಿಳಿಸಿರುತ್ತದೆ.(ಪ್ರತಿ ಲಗತ್ತಿಸಿದೆ)

ಈ ಹಿನ್ನೆಲೆಯಲ್ಲಿ ಮಾನ್ಯ ನ್ಯಾಯಾಲಯದ ಆದೇಶದಂತೆ ಪರಿಶೀಲಿಸಲಾಗಿ ಚಾಲ್ತಿಯಲ್ಲಿರುವ 2008 ರ ಇಲಾಖಾ ವೃಂದ ಮತ್ತು ನೇಮಕಾತಿ ನಿಯಮದಂತೆ ಪ್ರಾಧ್ಯಾಪಕರು/ ಸಹಾಯಕ ಪ್ರಾಧ್ಯಾಪಕರ ಹುದ್ದೆಗಳು ಶೇ.100 ರಷ್ಟು ನೇರ ನೇಮಕಾತಿ ಹುದ್ದೆಗಳಾಗಿರುವುದರಿಂದ ಅರ್ಜಿದಾರರಿಗೆ ಮುಂಬಡ್ತಿ ನೀಡಲು ನಿಯಮಗಳಲ್ಲಿ ಅವಕಾಶವಿರುವುದಿಲ್ಲ ಎಂದು ಈ ಮೂಲಕ ತಿಳಿಸಲಾಗಿದೆ.

ನಿರ್ದೇಶಕರು
23/10/18

ಇವರಿಗೆ:

1. ಪ್ರಾಚಾರ್ಯರು , ಬಿ.ಎಂ.ಎಸ್ ಇಂಜಿನಿಯರಿಂಗ್ ಕಾಲೇಜು, ಬೆಂಗಳೂರು ಇವರಿಗೆ ಮುಂದಿನ ಸೂಕ್ತ ಕ್ರಮಕ್ಕಾಗಿ
2. ಅಧ್ಯಕ್ಷರು/ಕಾರ್ಯದರ್ಶಿಗಳು, ಆಡಳಿತ ಮಂಡಳಿ, ಬಿ.ಎಂ.ಎಸ್ ಇಂಜಿನಿಯರಿಂಗ್ ಕಾಲೇಜು, ಬೆಂಗಳೂರು
- ✓ 3. ಡಾ.ರತನ್‌ರಾಜ್, ಉಪನ್ಯಾಸಕರು, ಐ.ಇ.ಎಂ ವಿಭಾಗ, ಬಿ.ಎಂ.ಎಸ್ ಇಂಜಿನಿಯರಿಂಗ್ ಕಾಲೇಜು , ಬೆಂಗಳೂರು

ಪ್ರತಿ:

1. ಶ್ರೀ ಎಂ.ಎಸ್.ಅನಂತರಾಮು, High Court Advocate, No.11, 1st Floor, 4th Cross, R.K.Puram, S.C. Road Cross, opp. Movie land theater , Bangalore - 560009

ಕರ್ನಾಟಕ ಸರ್ಕಾರ
ಸುವರ್ಣ ಕರ್ನಾಟಕ 2006

ANNEXURE -H

ಸಂಖ್ಯೆ: ಡಿಟಿಇ 21 ಇಎಸ್‌ಟಿ(4)ಎ 2005

ನಿರ್ದೇಶಕರವರ ಕಛೇರಿ,
ತಾಂತ್ರಿಕ ಶಿಕ್ಷಣ ಇಲಾಖೆ,
ಬೆಂಗಳೂರು-560 001,
ದಿನಾಂಕ: 25-8-2005.

ಸುತ್ತೋಲೆ

ವಿಷಯ: ಅನುದಾನಿತ ಇಂಜಿನಿಯರಿಂಗ್ ಕಾಲೇಜುಗಳ ಬೋಧಕ ಹುದ್ದೆಗಳ
ಮುಂಬಡ್ತಿ ಬಗ್ಗೆ ನೃಪ್ಪೀಕರಣ.

- ಉಲ್ಲೇಖ: 1. ಈ ಕಛೇರಿಯ ಸಮಸಂಖ್ಯೆಯ ಸುತ್ತೋಲೆ ದಿನಾಂಕ 2-8-05.
2. ಸರ್ಕಾರದ ಆದೇಶ ಸಂ. ಇಡಿ 117 ಡಿಟಿಇ 98, ದಿನಾಂಕ 16-6-2000.
3. ಸರ್ಕಾರದ ಆದೇಶ ಸಂ. ಇಡಿ 134 ಡಿಟಿಇ 02, ದಿನಾಂಕ 30-11-02.

ಉಲ್ಲೇಖ [1]ರ ಈ ಕಛೇರಿಯ ಸುತ್ತೋಲೆಯಲ್ಲಿ ಅನುದಾನಿತ ಶಿಕ್ಷಣ ಸಂಸ್ಥೆಗಳ ಬೋಧಕ ಮತ್ತು ಬೋಧಕೇತರ ಹುದ್ದೆಗಳನ್ನು ಮುಂಬಡ್ತಿಯಿಂದ ಭರ್ತಿ ಮಾಡಲು ಕ್ರಮ ಜರುಗಿಸುವಂತೆ ತಿಳಿಸಲಾಗಿದೆ. ಸದರಿ ಸುತ್ತೋಲೆಯ ಅಂಶಗಳನ್ನು ಮುಂದುವರಿಸುತ್ತಾ ತಿಳಿಸುವುದೇನೆಂದರೆ, ಬೋಧಕ ಹುದ್ದೆಗಳಲ್ಲಿ ಸಹಾಯಕ ಪ್ರಾಧ್ಯಾಪಕರ ಹುದ್ದೆಗಳನ್ನು ಮುಂಬಡ್ತಿಯಿಂದ ಭರ್ತಿ ಮಾಡುವ ಸಂದರ್ಭದಲ್ಲಿ ಜೇಷ್ಠತೆ, ರೋಸ್ಟರ್‌ಗಳನ್ನು ಅನುಸರಿಸುವುದರ ಜೊತೆಗೆ ವಿದ್ಯಾರ್ಹತೆಯನ್ನೂ ಸಹ ಗಣನೆಗೆ ತೆಗೆದುಕೊಳ್ಳುವುದು ಅವಶ್ಯಕವಾಗುತ್ತದೆ. ಆದ್ದರಿಂದ, ಉಲ್ಲೇಖ [2]ರ ಸರ್ಕಾರಿ ಆದೇಶದಲ್ಲಿ ಸಹಾಯಕ ಪ್ರಾಧ್ಯಾಪಕರ ಹುದ್ದೆಗೆ, ಪಿ.ಹೆಚ್.ಡಿ ಪದವಿಯೊಂದಿಗೆ ಕನಿಷ್ಠ 3 ವರ್ಷಗಳ ಸೇವಾನುಭವ ಹೊಂದಿರುವವರಿಗೆ ಮೊದಲು ಆದ್ಯತೆಯ ಮೇಲೆ ಪರಿಗಣಿಸಬೇಕಾಗಿರುತ್ತದೆ. ಒಂದು ವೇಳೆ ಪಿ.ಹೆಚ್.ಡಿ. ಪದವಿ ಪಡೆದವರು ಯಾರೂ ಇಲ್ಲದಿದ್ದ ವಕ್ರದಲ್ಲಿ ಸ್ನಾತಕೋತ್ತರ ಪದವಿಯೊಂದಿಗೆ 5 ವರ್ಷಗಳ ಸೇವಾನುಭವ ಹೊಂದಿರುವವರನ್ನು ಪರಿಗಣಿಸಬಹುದಾಗಿದೆ. ಆದ್ದರಿಂದ, ಸಹಾಯಕ ಪ್ರಾಧ್ಯಾಪಕ ಹುದ್ದೆಗೆ ಮುಂಬಡ್ತಿಗೆ ಪ್ರಸ್ತಾವನೆ ಸಲ್ಲಿಸುವಾಗ ಈ ಅಂಶಗಳನ್ನು ಪರಿಗಣಿಸಿ ಪ್ರಸ್ತಾವನೆ ಸಲ್ಲಿಸಲು ತಿಳಿಸಲಾಗಿದೆ.

ಕರಡು ನಿರ್ದೇಶಕರಿಂದ
ಅನುಮೋದಿಸಲ್ಪಟ್ಟಿದೆ.

ನಿರ್ದೇಶಕರು

ಪ್ರತಿ:

ರಾಜ್ಯದ ಎಲ್ಲಾ ಅನುದಾನಿತ ಇಂಜಿನಿಯರಿಂಗ್ ಕಾಲೇಜುಗಳ ಪ್ರಿನ್ಸಿಪಾಲುರು
ಮತ್ತು ಆದಳಿತ ಮಂಡಳಿ ಅಧ್ಯಕ್ಷರುಗಳಿಗೆ.

ಎಂ.ಸಿ.

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ಕರ್ನಾಟಕ ಸರ್ಕಾರ
ಸುವರ್ಣ ಕರ್ನಾಟಕ 2006

ANNEXURE - J

ಸಂಖ್ಯೆ:ಡಿಟಿಇ:70-ಇಎಸ್‌ಟಿ(4)ಎ 2005.

ನಿರ್ದೇಶಕರವರ ಕಛೇರಿ,
ತಾಂತ್ರಿಕ ಶಿಕ್ಷಣ ಇಲಾಖೆ,
ಬೆಂಗಳೂರು-560
ದಿನಾಂಕ:25-08-2005.

ಸುತ್ತೋಲೆ

ವಿಷಯ: ಅನುದಾನಿತ ಇಂಜಿನಿಯರಿಂಗ್ ಕಾಲೇಜುಗಳ ಬೋರ್ಡ್
ಮದ್ದೆಗಳ ಮುಂಬಡ್ತಿ ಬಗ್ಗೆ ಸ್ಪಷ್ಟೀಕರಣ.

ಉಲ್ಲೇಖ: 1] ಸರ್ಕಾರದ ಆದೇಶ ಸಂಖ್ಯೆ ಇಡಿ:17:ಡಿಟಿಇ:98.
ದಿನಾಂಕ: 16-06-2000.

2] ಈ ಕಛೇರಿಯ ಸುತ್ತೋಲೆ ಸಂಖ್ಯೆ: ಡಿಟಿಇ: 21;
ಇಎಸ್‌ಟಿ (4)ಎ 2005. ದಿನಾಂಕ: 25-08-2005.

* * * * *

ಉಲ್ಲೇಖ (2)ರ ಈ ಕಛೇರಿಯ ಸುತ್ತೋಲೆಯಲ್ಲಿ ಅನುದಾನಿತ ಇಂಜಿನಿಯರಿಂಗ್
ಕಾಲೇಜುಗಳಲ್ಲಿ ದಾಲಿ ಖಾಲಿ ಇರುವ ಸಹಾಯಕ ಪ್ರಾಧ್ಯಾಪಕರ ಹುದ್ದೆಗಳನ್ನು
ಮುಂಬಡ್ತಿಯಿಂದ ಭರ್ತಿಮಾಡುವ ಸಂದರ್ಭದಲ್ಲಿ ಪಿಹೆಚ್‌ಡಿ ಪದವಿಯನ್ನು ಪರಿಗಣಿಸುವ ಬಗ್ಗೆ
ಕೆಲವು ನಿರ್ದೇಶನಗಳನ್ನು ನೀಡಲಾಗಿತ್ತು. ನಕರಿ ಸುತ್ತೋಲೆಯನ್ನು
ಹಿಂದಕ್ಕೆ ಪಡೆಯಲಾಗಿದೆ.

ನಿರ್ದೇಶಕರು.

ಇವರಿಗೆ.

- 1] ರಾಜ್ಯದ ಎಲ್ಲಾ ಅನುದಾನಿತ ಇಂಜಿನಿಯರಿಂಗ್ ಕಾಲೇಜುಗಳ ಪ್ರಿನ್ಸಿಪಾಲರ ಮಾಹಿತಿ
ಮತ್ತು ಮುಂದಿನ ಕ್ರಮಕ್ಕಾಗಿ.
- 2] ರಾಜ್ಯದ ಎಲ್ಲಾ ಅನುದಾನಿತ ಇಂಜಿನಿಯರಿಂಗ್ ಕಾಲೇಜುಗಳ ಆಡಳಿತ ಮಂಡಳಿಯ
ಅಧ್ಯಕ್ಷರು ಇವರ ಮಾಹಿತಿ ಮತ್ತು ಮುಂದಿನ ಕ್ರಮಕ್ಕಾಗಿ.

Dr. A. R. /
31/8/05.

PROCEEDINGS OF THE GOVERNMENT OF KARNATAKA

Sub:- Reservation for Scheduled Castes and Scheduled Tribes under Article 16(4) of the Constitution in specified cadres, in promotion- Backlog- Regarding.

Read:- 1) Government Order No.DPAR 29 SBC 77,
dated: 27.4.1978.

2) Government Order No.DPAR 22 SBC 79,
dated: 30.08.1979.

3) Notification No.DPAR 13 SRR 92,
Dated: 1st April 1992.

- - -

PREAMBLE:-

In the order read at (1) above, the policy of reservation in promotion in the State Civil Services was introduced with effect from 27th April 1978. For the implementation of this policy, detailed instructions along with a roster of 33 points were also given.

2. In the order read at (2) above, the roster given in the order dated: 27th April 1978 was replaced by a new roster; but the other instructions remained unaltered.

3. According to this policy, if on any occasion of promotion, qualified and suitable Scheduled Caste or Scheduled Tribe officials, for whom vacancies are identified, are not available such vacancies could be filled by promotion of qualified and suitable persons from amongst others. The vacancies lost to Scheduled Castes and Scheduled Tribes need not be carried forward.

4. In the Notification read at (3) above, a proviso was inserted to rule 8 of the Karnataka Civil Services (General Recruitment) Rules, 1977, according to which the vacancies identified for Scheduled Castes and Scheduled Tribe officials but not filled by them would have to be treated as backlog and the same would have to be made good in future.

5. The amendment rule dated: 1st April 1992 was challenged in the Karnataka Administrative Tribunal by some officials. In application Nos. 1287 and 1296/92 filed by L.R. Nagabhushana Rao, and others, the Karnataka Administrative Tribunal in its order dated: 25th April 1994, observed that the amendment rules were not unconstitutional. But in another Application No.3727/92, filed by one Sri S. Dasappa, the Tribunal passed an order,

on 29th April 1996 following the application and holding the amendment Rules, 1992 as "non-est". The State as well as one of the affected parties, namely, Bhaktrame Gowda, preferred appeals in the Supreme Court. Subsequently, the Karnataka Administrative Tribunals, in Application No.2928-2932/92 of Dr.H.J. Nagaraj and others, passed an order on 1st February 1996 striking down the amendment rules of 1992 as "non-est". Similar orders were also passed by the Karnataka Administrative Tribunal in Application Nos. 5511-19/92 of V. Shivakumar and others, on 16th February 1996. The State preferred appeals in these cases also in the Supreme Court.

6. The Supreme Court, in the Civil Appeals Nos. 490-491/97, (arising out of SLP (C) Nos. 9132-33/94 of Bhaktaram Gowda and others) clubbed with Civil Appeals Nos. 492-98, 501-02 and 499/97 (arising out of SLP (C) Nos. 6086-87/95, 17091-95/96, 5152-53/96 and 10429/96), passed final orders on 24th January 1997 setting aside the orders of the Karnataka Administrative Tribunal and directing the State Government to issue guidelines to operate the backlog. The salient features of the orders of the Supreme Court are that:-

- i) The Finding of the Karnataka Administrative Tribunal to the effect that the First proviso to rule 8 of the Karnataka Civil Services (General Recruitment) Rules, 1977 could not be made with retrospective effect, is unsustainable;
- ii) The view that the rules are non-est and, therefore, the proviso is ultravires is also not correct;
- iii) The operation of the rules does not depend on the guidelines to be laid;
- iv) Merely because the guidelines have not been provided, the proviso to rule 8 made under the proviso to Article 309 does not become non-est;
- v) The Government is required to formulate the guidelines under Article 16(4) of the Constitution to the manner in which the backlog vacancies are required to be filled up;

- vi) It may be construed that only to this extent the proviso remains unworkable, i.e., until the guide-lines under Article 16(4) have been issued by the Government;
- vii) Under the circumstances what-ever-promotions have been given, they would remain valid subject to laying down the guidelines and working out the backlog in the light of the guidelines provided thereunder;
- viii) All the promotions will be subject to the fitment and adjustment between the general candidates and reserved candidates, in the respective categories, in accordance with the guidelines & law laid down by the Supreme Court.

7. The Government has taken all the relevant aspects into consideration and examined the matter in detail.

GOVERNMENT ORDER NO. DPAR 10 SEC 97, BANGALORE, DATED: 24.6.1997.

8. In the fore-going circumstances, the Government are pleased to make the following orders:

- i) In the promotions made on or subsequent to 27th April 1978 in all cadres/services covered by the Government Order dated: 27th April 1978, read at (1) above and the connected orders, the vacancies identified for Scheduled Castes and Scheduled Tribes but not filled by these respective categories for want of eligible persons and filled by others or kept vacant, shall be calculated and identified as backlog;
- ii) To clear the backlog so identified, in the roster attached to the Government Order dated: 30.8.1979, read at (2) above, in addition to the points identified for Scheduled Castes and Scheduled Tribes, the following additional points shall also be identified for them as

indicated below:-

Scheduled Caste: 5, 9, 11, 18, 20, 24, 26, 30,
and 32.

Scheduled Tribe: 16.

- iii) All the promotions made against backlog, with effect from 1.4.1992, in accordance with the amendment rule read at (3) above, shall be reviewed in accordance with this order and the promotions of Scheduled Castes and Scheduled Tribes shall be adjusted and fitted with reference to the roster points, annexed to this order along with the unreserved categories;
- iv) After effecting review of promotion and adjustment and fitment as indicated in item (iii) above, if some more persons belonging to the Scheduled Castes and Scheduled Tribes who have already been promoted against backlog cannot get adjusted due to want of adequate number of vacancies and as per the aforesaid roster points, such persons shall be adjusted and fitted in accordance with the procedure specified in item (iii) while effecting promotion in respect of future vacancies. Until such time, they shall be continued against super-numerary posts to be created by the concerned Administrative Department. For this purpose, the Secretaries to Government are hereby delegated the power to create supernumerary posts presuming the concurrence of Finance Department and to that extent the Government Order No.FD 1 TEP 96, dated 10th July 1996, shall be deemed to have been modified accordingly.
- v) While adjusting and fitting promotees, as indicated in item (iii) and (iv) above, the inter-se seniority among the General category, the Scheduled Caste category and the Scheduled Tribe category shall be determined in accordance with rule 4 or rule 4A as the case may be, of the

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-5-

Karnataka Government Servants (Seniority) Rules, 1957. The roster points are meant by only for calculating the number of vacancies that become available for the different categories on each occasion and they do not determine the seniority;

- vi) Once the backlog in reserved category is cleared, from that stage onwards, the additional points on the roster, identified as per item (ii) above shall be treated as unreserved.

9. All the Principal Secretaries/Secretaries to Government and Heads of Departments shall take action immediately in accordance with these guidelines and also issue suitable instructions to the appointing authorities coming under their administrative control to take similar action immediately.

10. This Order is issued with the concurrence of Finance Department as conveyed in its U.O. Note No. ACS & PS/FD 783/97 dated: 7th May 1997.

BY Order and in the name of the
Governor of Karnataka,

Sd/-

(ABDUL KULDEER)

Joint Secretary to Government-I,
Dept. of Personnel and Administrative
Reforms (Service Rules).

'COPY'

(DEVIRAJU)

SECTION OFFICER,
DPIR (SERVICE RULE-1. SECTION).

L.

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ANNEXURE

RESERVATION IN PROMOTION-ROSTER TO CLEAR THE

BACKLOG

1) SC	12) UR	23) UR
2) ST	13) UR	24) SC
3) UR	14) SC	25) UR
4) UR	15) UR	26) SC
5) SC	16) ST	27) SC **
6) UR	17) UR	28) UR **
7) SC	18) SC	29) UR
8) UR	19) UR	30) SC
9) SC	20) SC	31) UR
10) UR	21) SC	32) SC
11) SC	22) UR	33) UR

NOTE:-

1. Existing roster .. SC- 1,7,14,21,27 **
ST- 2.
2. Additional points .. SC- 5,9,11,13,20,24,
26,30,32.
ST- 16.

3. Once the backlog is cleared, from that stage the additional points on the roster need not be given to Scheduled Castes or Scheduled Tribes, as the case may be and they should be given to unreserved category.

** vide Corrigendum dt.21.7.97.

sd/-

(ABDUL KHADEER)
Joint Secretary to Government,
D.P.A.F. (Service Rules).

"COPY"

(DEVARAJU)
SECTION OFFICER,
DPR (SERVICE RULE-A SECTION).

L.

C. P.

M/S Anand

LIST - IV

IN THE KARNATAKA ADMINISTRATIVE TRIBUNAL AT BANGALORE

Friday, the 14th Day of December, 2012 at 11-00 A.M.

COURT HALL-I

QUORUM

HON'BLE Mr. JUSTICE A.C. KABBIN..... CHAIRMAN
AND

HON'BLE Mr. ABHIJIT DASGUPTA ...ADMINISTRATIVE MEMBER

(APPLICATIONS IN WHICH INTERIM ORDER TO BE EXTENDED)

FOR PRELIMINARY HEARING

1. A.No. 1148 of 2011
(Suspension)
Sri. L. Siddalah for Applnt.
Govt. Adv. R-1, 2 & 4
Sri. B.J Somayaji for R-3
2. A.No. 4001 of 2011
(Discharge of Probationer)
M/s. Subba Rao & Co., for Applnt.
Govt. Adv. For Respds.
3. A.No. 6398 of 2011
(Suspension)
Sri. K. Prakash Hegde for Applnt.
Govt. Adv. For R-1
Sri. M. Narayanareddy for R-2
4. A.No. 6808 of 2011
(Posting)
Sri. K.T Garadimani for Applnt.
Govt. Adv. For Respds.
5. A.No. 7109 of 2011
(Transfer)
Sri. B. Krishna for Applnt.
Govt. Adv. For Respds.
6. A.No. 7451 of 2011
(Suspension)
M/s. Subba Rao & Co., for Applnt.
Govt. Adv. For Respds.
7. A.No. 7497 of 2011
(Regularisation)
Sri. K. Sreedhar Assts. For Applnt.

- 8 . A.No. 7605 of 2011
(Suspension)
Sri. K. Anandarama for Appint.
C/w
A.No. 7076 of 2011
A.No. 7077 of 2011
A.No. 7078 of 2011
M/s. A.K Vasanth &
M.K Girish Assts. For Appints. Govt. Adv. For Respdts.
in these cases
- 9 . A.Nos. 7692 to 7696 of 2011
(Validity of Rules)
Sri. S.G Pandit for Appints. Govt. Adv. For Respdts.
- 10 . A.No. 7950 of 2011
(Handing Over the Charge)
Sri. P.H Virupakshaiah for Appint. Govt. Adv. For Respdts.
- 11 . A.No. 7965 of 2011
(Discharge of Probationer)
Sri. P.B Bajentri for Appint. Govt. Adv. For Respdts.
- 12 . A.No. 168 of 2012
(Cacellation of Transfer)
M/s. A Nagarajappa Assts. For
Appint. Govt. Adv. For Respdts.
- 13 . A.No. 529 of 2012
(Sele .tion - Nurse)
Sri. K. Govindaraj for Appint. Govt. Adv. For Respdts.
- 14 . A.No. 703 of 2012
(Selection - Jailor)
Sri. M. Madhusudhan for Appint.
C/w
A.No. 696 of 2012
Sri. Javid Hussain for Appint. Govt. Adv. For Respdts.
- 15 . A.No. 1825 of 2012
(Identification of Excess Teacher)
Sri. P.B Bajentri for Appint. Govt. Adv. For Respdts.
- 16 . A.No. 1841 of 2012
(Repatriation)
M/s. Subba Rao & Co., for Appint. Govt. Adv. For R-1 & 2
Sri. N.K Ramesh for R-3
- 17 . A.No. 2044 of 2012
(Suspension)
M/s. Subba Rao & Co., for Appint. Govt. Adv. For R-1
R-2 svd. unreptd.

ಕರ್ನಾಟಕ ಸರ್ಕಾರ
GOVERNMENT OF KARNATAKA

FAX: 080-22867522
TEL: 080-22862583

ಕ್ರಮಾಂಕ
NO.

50477-78/Cr/H

TO

The Secy.to Govt.,
Department of Technical
Education,
M.S.Buildings,
Bangalore.

ಮಾನ್ಯರ,
SIR,

ಅಡ್ವೋಕೇಟ್ ಜನರಲ್ ಅವರ ಕಛೇರಿ
ಉಚ್ಚ ನ್ಯಾಯಾಲಯದ ಕಟ್ಟಡ
ಬೆಂಗಳೂರು- 560 001

OFFICE OF THE ADVOCATE GENERAL
HIGH COURT BUILDING
BANGALORE-560 001

ದಿನಾಂಕ DATED.....

Dated:01.02.2013

SUB: W.P.No.672/2013 on the file
of the High Court of Karnataka
at Bangalore - Dr.Rathanraj /vs/
State by Secy.to Govt.,
Department of Technical
Education, Bangalore and ors.

In the above Writ Petition, the petitioner has
prayed to set aside the order bearing No.KTE 66 EST
4(A) 2006 dated 31.10.2012 at Annexure-G issued by the
3rd Respondent - Director, Department of Technical
Education, Bangalore, and the same is illegal
malafide and unreasonable and for such other reliefs.

The above Writ Petition was listed before
C.H.No.27 on 31.01.2013 for preliminary hearing.
After hearing both the sides, the Hon'ble Court has
issued notice for Respondents.

In this case, we have to file the statement of
objections. Hence, you are hereby requested to send
the instructions along with parawise remarks and

original records to this office so as to enable us to
file the statement of objections immediately.

Treat this matter as very urgent.

Yours faithfully,


(RAGHAVENDRA G. GAYATHRI)
GOVT. PLEADER

Copy to

The Director of Technical Education, Department of
Technical Education, M.S. Building, Bangalore.

rgg/ns/310113/010213



19155-156/CA/13-14 O/c

The Director of Technical Education,
Department of Technical Education,
M.S. Building,
Bangalore-560 001.

01.08.2013

Sub: W.P.No. 672 of 2013 (S) on the file of
High Court of Karnataka at Bangalore - Sri
Dr.Rathanraj K.J, Selection Grade Lecturer vs.
The State & Others.

- - -

The Petitioner has filed the above Writ Petition
sought for setting aside the order bearing No.KTE 66 EST
4(A) 2006 dated 31.10.2012 vide Annexure-G passed by you
and for other reliefs.

The above matter came up for preliminary hearing
before C.H.No.24 on 31.07.2013 and the Hon'ble Court has
issued notice to the respondents 1 & 3 and directed me to
file objections within two weeks.

Hence, you are requested to collect copy of the writ
petition from this office and to send parawise remarks and
connected original records pertaining to the above case
along with an officer concerned who is well conversant with
the facts of the case so as to file the Statement of
Objections. Please treat the matter as urgent.

Yours faithfully,

(RAGHAVENDRA G. GAYATHRI)
ADDL. GOVT. ADVOCATE

Copy to:

1.The Secretary to Government, Department of Technical
Education, M.S.Building, Bangalore-560 001.

RGG/3107/AG/0108